“Without effective remedy”?

A public finding, tested for the evidence behind it

THE CLAIM

“Residents complain without effective remedy.”

Parliamentary Ombudsman, Part 2 of a two-part note, 3 March 2026

Said of regular nightlife venues licensed close to homes.

Part 1 of the note documents fragmented, complaint-driven enforcement.

VERDICT

NOT SUBSTANTIATED

A structural case, but no outcome data.

SUPPORTED | LARGELY SUPPORTED | **NOT SUBSTANTIATED** | MISLEADING | CONTRADICTED

MAIN RESULTS

5

Laws, several enforcers

Part 1 lists five laws and their authorities: the Ombudsman’s own account.

0

Outcome figures offered

Part 2 gives no counts of complaints, fines or closures.

98

Police reports, 4 towns

Jan 2021 to Jun 2022 (second-hand); an input, not an outcome.

1

Remedy shown: boat parties

Notice to Mariners 115 of 2025 after Ombudsman action. A different case.

?

Complaints resolved

No published figure on how many noise complaints end in action.

FAIR TO SAY

The Ombudsman’s note is a legal analysis of human-rights case law, not a statistical study. This check asks only whether the outcome statement can be tested with public data.

WHAT WOULD SETTLE IT

- ☐ Complaints to police, PA, ERA and councils.
- ☐ Outcomes: fines, closures, time to resolve.
- ☐ The cases behind the Ombudsman’s finding.
- ☐ Part 1’s recommendations: who acts, by when.